

SENATE BILL 1739

By Seal

AN ACT to amend Tennessee Code Annotated, Title 7,
Chapter 56, Part 2 and Title 64, Chapter 2, relative
to railroad authorities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 64-2-101, is amended by deleting the section and substituting instead:

(a) There is created the North East Tennessee railroad authority in the counties of Anderson, Campbell, Scott, Claiborne, Union, and Grainger.

(b) This authority is intended to secure economic benefits to the counties of Anderson, Campbell, Scott, Claiborne, Union, and Grainger by providing for the continuation of railroad service in Anderson, Campbell, Scott, Claiborne, Union, and Grainger counties.

SECTION 2. Tennessee Code Annotated, Section 64-2-102, is amended by deleting subdivision (1) and substituting instead:

(1) Four (4) or more of the counties of Anderson, Campbell, Scott, Claiborne, Union, and Grainger are authorized, by a vote of two-thirds (2/3) of their respective governing bodies, to become members of the authority;

SECTION 3. Tennessee Code Annotated, Section 64-2-110, is amended by deleting the section and substituting instead:

All contracts of the authority must be entered into and executed in such manner as may be prescribed by statutes, regulations, and procedures governing contracting by county governments; provided, that a contract or acquisition by purchase of equipment, apparatus, materials, or supplies involving more than the applicable maximum threshold

over which public advertising and sealed competitive bids or proposals are required for nonemergency, nonproprietary purchases as established pursuant to § 12-3-1212, or for construction, installation, repair, or improvement of the property or facilities involving more than such applicable maximum threshold must not be made until after the contract has been advertised for bids. Purchases of like items must be aggregated for the purposes of the bid threshold. Advertisement is not required when an emergency arises and requires immediate delivery of the supplies or performance of the service.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.